

5.

CASE #	CASE NAME	HEARING NAME
CVME2606789	IN RE: 765 S STATE STREET, HEMET, CA 92543	PETITION RE: UNRESOLVED CLAIMS

Tentative Ruling:

Moving party: Petitioner Quality Loan Service Corp.

Responding party:

Motion filed: 5/13/26

Opposition filed:

Reply filed:

This is a petition regarding unresolved claims pursuant to Civil Code section 2924j filed May 13, 2026 regarding \$26,688.08¹ in surplus funds after trustee's sale. The petition states that the surplus funds belong to Arlene Frances Martinez, but that Trustee received a claim from James Q. Lacklear Jr. Based on Mr. Lacklear's objection, Petitioner alleges it is unable to determine how the remaining surplus funds should be distributed.² As a conflict exists between potential claimants to the surplus funds.

Mr. Lacklear's objection is on the grounds that he is an heir and creditor of the Estate of James Q. Locklear Sr. who owned 50% of the property at the time of the foreclosure on November 20, 2025. The property's grant deed reflects ownership was by "James Quentin Lacklear, Sr. A widower & Arlene Frances Martinez, A married woman as her sole and separate property." Lacklear Sr. died in 2014.

Lacklear Jr. asserts that Martinez is not the personal representative of the estate and that he has a pending creditor's claim in probate, but provides no declaration or reference to the probate proceeding. He simply asserts that on February 5, 2026, he filed a declaration with the Riverside County Superior Court notifying the court of the pending claim and Ms. Martinez's lack of authority and that the surplus funds should be deposited with the court.

On May 22, 2026, this court sent a notice to all potential claimants. Thereafter, Arlene Martinez filed a claim with this court alleging that she filed a Petition for Probate for James Locklear Sr., which Petition was granted and the Order for Probate was signed on November 4, 2025. She asserts that on April 17, 2026, this Order for Probate was amended and the Court authorized for "any Estate Funds that comes into the possession of Claimant shall be placed into Olson Law Firm's Trust Account...", which funds shall not be disbursed until further Order of the Court. Attached was a copy of the Order for Probate issued in PRMC2500688, The Estate of James Q. Locklear, Sr.

Accordingly, this court **DENIES** the petition. This court will not accept any funds. The Trustee can comply with the Court's order in PRMC2500688 and be relieved of further responsibility related to the surplus funds.